

Safe to Talk, Safe to Work: Anti-SLAPP Statutes and Workplace Safety

by

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The paper

1. Examines whether legal protection of stakeholder's voice improves workplace safety
 - ▶ Focus on state-level anti-SLAPP laws designed to protect individuals from lawsuits intended to silence them
 - ▶ Measures workplace safety using OSHA establishment-level workplace injury data
 2. Employs a within-firm, cross-establishment stacked DiD design
- ▶ **Findings:**
1. Anti-SLAPP laws adoption reduces workplace injuries
 2. Effects emerge in the first two years after adoption with no significant pre-trend
 3. Stronger anti-SLAPP legal protection leads to larger workplace injury reduction
 4. Larger injury reduction in industries, labor markets & states where exposure of unsafe conditions is more costly

Main comments: Contributions

1. Evidence of firm-level operational consequences of anti-SLAPP laws
 - ▶ Anti-SLAAP laws → firms anticipate employees to speak more freely → firms improve safety → injuries decline
 - ▶ This is your major contribution and the examined channel that distinguishes the paper from other anti-SLAAP studies
2. Examines how legal protection contributes to stakeholder governance
 - ▶ This is important and should be emphasized more; As written the paper limits itself to anti-SLAPP laws and workplace safety
3. Evidence that working conditions are shaped by the broader legal environment
 - ▶ Maybe you should tie this with the social dimension of ESG

Main comments: Methodology

1. Within-firm, cross-establishment identification is a major strength
 - ▶ Allows to identify the effect from variation in legal exposure across same firm's establishments by controlling for firm-year shocks
2. Workplace safety may be affected by other state-level labor-policy changes occurred at the same time as anti-SLAPP adoption
 - ▶ You can add state-level labor-policy controls
3. Injuries reduction may reflect changes in firm's reporting behavior and not an increase in workplace safety
 - ▶ Examine also severe injuries, OSHA inspections and violations
4. Distance to headquarters is not a direct monitoring measure
 - ▶ It could capture other things such as regional operations, better staffing or different establishment types

Other comments

1. As it is now the paper has several identities; You should clarify whether the contribution is legal, governance or labor-focused
2. Explain better why workplace safety is the ideal setting
 - ▶ Focus on information asymmetry between employees/ local stakeholders and outsiders/ headquarters
3. You should be careful with the legal details; There is heterogeneity among anti-SLAPP laws
 - ▶ Some anti-SLAPP laws apply only to specific types of speech; They might protect public participation but not internal employee complaints
 - ▶ Enactment, effective and court enforcement dates usually differ